

Judgment Sheet
**IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT**

Writ Petition No. 8253/2025/BWP

Muhammad Nawaz

Versus

Secretary Colonies Board of Revenue Punjab Lahore etc.

J U D G M E N T

Date of hearing:	04.03.2026
Petitioner by:	Rana Farooq Anwar, Advocate.
Respondents by:	Mr. Zafar Iqbal Awan, Additional Advocate General, Punjab. Mr. Muhammad Azam Chughtai, Assistant Advocate General, Punjab. Mr. Muhammad Asim, Litigation Officer, Municipal Committee, Chishtian District, Bahawalnagar.

MALIK WAQAR HAIDER AWAN, J. Through this constitutional petition, following prayer has been made:-

*“It is therefore, humbly prayed that by accepting this writ petition, impugned act of the Municipal Committee Chishtian to handover 05-Kanal Land to Sahulat Bazhar Chishtian from Central Park Chishtian is void, without jurisdiction and liable to be set-aside and forbids the construction of buildings of Bazar in the public park, in the interest of justice.
Any other remedy which the Hon’ble Court deemed fit may graciously be awarded to petitioner.”*

2. At the very inception, learned counsel for the petitioner has highlighted that previously, another Writ Petition No.576/2002 titled Muhammad Nawaz v. District Nazim and 2 others was filed by the petitioner which was disposed of vide order dated 14.01.2003 upon the statement of learned counsel for respondents, who undertook that

construction would be made in accordance with the site plan (Annexure-D/4) placed on record with the reply and comments submitted on behalf of respondents.

3. Learned counsel for the petitioner emphasizes that this is another attempt to encroach land measuring 05 Kanals earmarked for public park for the purpose of so-called Sahulat Bazar at Chishtian Central Park through Mutation No.23464 dated 13.08.2025. Submits that the aforesaid land is public/Municipal property and cannot be allotted, transferred and handed over to Sahulat Bazar. Avers that the land in question forms part of a public park which is being used by the inhabitants for multiple healthy activities like walk, exercise, recreation and sports. Adds that the said park is specifically reserved for welfare of public and its purpose is to promote public health, therefore, the land in question can neither be allotted/handed over nor utilized for any commercial activity or non-recreational purpose. Submits that this act of respondents is indubitably illegal, arbitrary and against the fundamental rights protected under the Constitution of the Islamic Republic of Pakistan, 1973 (“**Constitution**”). Asserts that previously, in the year 2021-2022, a huge amount of Rs.41,800,000/- has been spent for beautification of the park in question and now respondents have taken a U-turn by converting a portion of public park into Sahulat Bazar for commercial activities. In order to strengthen his arguments, learned counsel for the petitioner relies upon Moulvi Iqbal Haider v. Capital Development Authority and others (PLD 2006 SC 394), M.Q.M. (Pakistan) and others v. Pakistan through Secretary Cabinet Division, Government of Pakistan and others (PLD 2022 SC 439) and Akram Ali and others v. Province of Sindh through Secretary Local Government, Sindh Secretariat, Karachi and others (2022 CLC 1634).

4. Conversely, learned Law Officers submit that the property has neither been transferred nor has any conversion taken place rather it has been earmarked for Sahulat Bazar in order to facilitate the visitors of the public park and general public. It has been emphasized by learned Law

Officers that under Section 56(d) of the Specific Relief Act, 1877 (“**Act 1877**”), injunction cannot be granted to interfere with public duties of any department of the Federal Government or any Provincial Government or with the sovereign acts of Foreign Government. It has further been stated that the petitioner has no personal interest in the matter and as such has no *locus standi* to file the present constitutional petition under Section 56(k) of the Act 1877.

5. Heard. Record perused.

6. Stripped of unnecessary details, the pivotal questions for determination before this Court are as follows:-

(a) Notwithstanding the settled principle that courts ordinarily refrain from interfering with policy decisions of the Government, whether this Court can adjudicate upon a dispute concerning the alleged encroachment of a public park and its utilization for a Sahulat Bazar where such action is asserted to infringe the fundamental rights guaranteed under the Constitution?

(b) Whether utilization of a public park for a Sahulat Bazar infringes the fundamental rights of citizens, particularly right to life as well as clean and healthy environment under Articles 9 and 9-A of the Constitution?

(c) Whether the impugned decision to establish Sahulat Bazar at the site of public park has been taken arbitrarily, without lawful authority, feasibility study and due process violating the Constitution which guarantees lawful treatment and equality before law?

(d) Whether the residents of the locality possess a legitimate expectation that land earmarked as a public park would remain available for recreation and environmental benefit and whether the impugned action defeats such expectation without lawful justification?

(e) Whether a public park, being owned by the Government in trust for the benefit of public, could legally be converted for commercial or other purposes such as Sahulat Bazar and whether such action amounts to breach of “public trust doctrine”?

7. It is the constitutional right of every citizen to be dealt with in accordance with law. It is well-settled that constitutional courts ordinarily refrain from interfering in policy matters, however, such

restraint is not absolute. Judicial review is ousted only where the policy decision is lawful, non-arbitrary and does not infringe fundamental rights of the citizens. If a policy is chalked out in contravention of the fundamental rights of citizens, Courts must not hesitate to interfere and strike down the portion(s) of decision or policy overlapping the fundamental rights guaranteed by the Constitution. In this regard, reliance can be placed on Messrs Al-Raham Travels and Tours (Pvt.) Ltd. and others v. Ministry of Religious Affairs, Hajj, Zakat and Ushr through Secretary and others (2011 SCMR 1621).

8. The controversy in the present case cannot be examined merely from the standpoint of administrative convenience or Government policy. The matter directly implicates the fundamental rights of the citizens guaranteed under the Constitution. Article 9 of the Constitution mandates that no person shall be deprived of life or liberty save in accordance with law. The word “life” does not mean mere vegetative or animal life rather it includes life with all amenities including clean and healthy environment as covered under Article 9-A of the Constitution. Any executive action that results in reduction of public green spaces, environmental degradation or disturbance of ecological balance directly encroach upon this constitutional guarantee.

9. From perusal of the report submitted on behalf of respondent No.6, it transpires that land measuring 64 Kanals 05 Marlas owned by the Municipal Committee, Chishtian situated at Faisal Market Kacha Karkhana, Mouza Qasba Chishtian, is being used as park for general public and upon initiation of Programme for the establishment of Sahulat Bazars in Punjab by the Government, a piece of land measuring 05 Kanals within the limit of Central Park has been allocated for Sahulat Bazar. Alongwith the report of respondent No.6, letter No.CB/180 dated 10.07.2025 titled Transfer of State Land in favour of Sahulat Bazaars written by the Additional Deputy Commissioner (Revenue) Bahawalnagar, addressed to all the Assistant Commissioners in the District Bahawalnagar has been appended, according to which

05 Kanals of the subject park has also been included. This letter further divulges that the park is owned and possessed by the Municipal Committee, Chishtian. Vide letter No.MC/CTN/EB/407 dated 19.07.2025, the Chief Officer, Municipal Committee, Chishtian has issued an NOC for establishment/construction of Sahulat Bazar wherein it has been mentioned that physical possession of the land of park is recommended to be handed over, free of cost, to the Punjab Sahulat Bazaars Authority, operating under the Price Control & Commodities Management Department, Government of the Punjab, for execution of the project. Another letter (File No.PKSB-25/301 dated 10.11.2025) issued by the Punjab Sahulat Bazaar Authority depicts that earlier another site near the FBR Office was earmarked and proposed for establishment of Sahulat Bazar but was found unsuitable, whereafter the Central Park site, covering approximately 05 Kanals, situated in the heart of the city, has been declared suitable for the purpose.

10. There is no gain saying the fact that Sahulat Bazar is an appreciable act to facilitate general public with an intention that it must be in easy approach and must be in the heart of city, enabling maximum people to avail the facility. It is important to acknowledge that the idea of establishing Sahulat Bazar is a welfare-oriented step taken by the Government for the benefit of the general public. The purpose behind such Bazaars is to provide essential commodities at reasonable prices and at convenient places and such initiatives, aimed at public convenience and relief, certainly deserve appreciation. Nevertheless, this facility should be given without taking back already existing facility in shape of public park. Every inch of the land of public park is to be protected not only from private encroachment but also from usurpation of the Government or any other authority while making that attempt under a legal cover in any shape whatsoever. The encroachment (even in the garb of legal cover) would not restrict to 05 Kanals of land of public park but it would also ensue and affect the whole peaceful atmosphere of the public park. Undeniably, public park is a source of

physical health and peaceful atmosphere, definitely having soothing effects on mental health too, therefore, the encroachment, if allowed to perpetuate, would not be only to the extent of 05 Kanals but also would have adverse and hazardous effects of all kinds upon the atmosphere of park. There is a well-known saying, ایمان کے بعد صحت سب سے بڑی نعمت ہے.

11. A public park is not a mere amenity but it is an environmental safeguard integral to urban survival. Its utilization for any other facility, even under the nomenclature of a Sahulat Bazar, entails reduction of open space, increased vehicular congestion, noise and air pollution, each of which cumulatively diminishes the quality of life of residents. Therefore, diversion of land reserved for a park offends the constitutional mandate as it curtails the citizens' right to live in a healthy and sustainable environment.

12. A land reserved for a public park under a "Master Plan" cannot be altered and utilized for any other purpose by mere executive sanction, which amounts to arbitrary exercise of authority and undermine the legitimate expectation of the residents. The establishment of Sahulat Bazar, though ostensibly serving public convenience, cannot be pursued at the cost of extinguishing a portion of public park. constitutionally protected environmental rights.

13. It would be imperative to shed light on "**Public Trust Doctrine**" which dictates that public parks are held by the Government in "trust" for the benefit of general public. Under this doctrine, the Government is not the "owner" of a park rather it is a "trustee" with a fiduciary duty to protect the public parks for current and future generations.

14. During the course of arguments, learned counsel for the petitioner pointed out that in the recent past, a sum of Rs. 41,800,000/- had been spent on the beautification of the park in question and the Government has now taken a U-turn by establishing a Sahulat Bazar over a portion measuring 05 Kanals of the park. This fact has not been denied by the

learned Law Officers, thereby clearly affirming the somersault taken by the Government.

15. From perusal of the record, no *malafide* could be attributed to the petitioner who is a whistle blower and has come forward to protect the fundamental rights of residents of the locality.

16. In view of the foregoing discussion, it is evident that the proposed establishment of a Sahulat Bazar over a portion of land reserved for a public park is not only inconsistent with the “Master Plan” but also violative of the constitutional guarantee of a healthy and pollution-free environment flowing from Articles 9 and 9-A of the Constitution, therefore, the Government cannot divert the same for commercial purpose or any purpose other than development of park.

17. As a sequel to above, the instant constitutional petition is **allowed**, the impugned action of respondents to establish a Sahulat Bazar on 05 Kanals of land forming part of “public park” is declared illegal and without lawful authority. Respondents are restrained from converting or utilizing any portion of the park for any purpose other than that for which it has been reserved.

(MALIK WAQAR HAIDER AWAN)

JUDGE

Signed
17.03.2026

Abis Ali

APPROVED FOR REPORTING

JUDGE